

MASTER SERVICES AGREEMENT

Nexaflow Technologies Pvt. Ltd. | Document Ref: MSA-NXT-2025-0047 | Version 1.2

Service Provider:	Nexaflow Technologies Pvt. Ltd., CIN: U72900KA2019PTC123456
Client:	As identified in the applicable Statement of Work (SOW)
Effective Date:	01 March 2025
Term:	2 years from Effective Date, automatic annual renewal unless terminated with 90 days notice
Governing Law:	Karnataka, India — exclusive jurisdiction of courts in Bengaluru
Payment Terms:	Net 30 days from invoice date
Document Ref:	MSA-NXT-2025-0047 Version 1.2 Confidential

1. DEFINITIONS

"Agreement" means this MSA including all Schedules and SOWs. "Services" means technology services in each SOW. "Confidential Information" means non-public information disclosed by either party. "IP" means all patents, copyrights, trademarks, and trade secrets.

2. SCOPE OF SERVICES

2.1 Nexaflow Technologies Pvt. Ltd. ("Service Provider") shall provide Services as described in each Statement of Work executed between the parties.

2.2 The Service Provider shall assign qualified personnel with appropriate skills and experience to deliver the Services. The Client may request replacement of personnel where performance is demonstrably unsatisfactory.

2.3 The Service Provider shall maintain all licenses, permits, and certifications required to perform the Services throughout the term.

3. PAYMENT TERMS

3.1 Client shall pay all invoices within thirty (30) calendar days of invoice date (Net 30). Invoices submitted monthly in arrears unless otherwise specified in the SOW.

3.2 All amounts are in Indian Rupees (INR) exclusive of applicable taxes including GST.

3.3 Late payments attract interest at 1.5% per month on outstanding balance from the due date.

3.4 Service Provider may suspend Services if payment is outstanding beyond 45 days without a valid dispute.

4. INTELLECTUAL PROPERTY

4.1 Each party retains ownership of pre-existing Background IP. No licence is granted except as strictly necessary to perform the Services.

4.2 All deliverables created specifically for the Client (Foreground IP) shall vest in the Client upon full payment.

4.3 Service Provider retains rights to general skills and knowledge acquired during engagement, provided no Client Confidential Information is used.

5. CONFIDENTIALITY

5.1 Each party shall keep the other's Confidential Information strictly confidential without prior written consent for disclosure to any third party.

5.2 Confidentiality obligations survive termination for five (5) years.

5.3 Exclusions: (a) publicly available information; (b) known prior to disclosure; (c) required by law or court order.

6. SERVICE LEVELS

6.1 Minimum uptime: 99.5% per calendar month for hosted services, excluding notified maintenance windows.

6.2 Scheduled maintenance: maximum 4 hours/month, between 02:00-06:00 IST, with 72 hours advance notice.

6.3 Service credits per Schedule B are the Client's sole remedy for SLA non-compliance.

7. TERMINATION

7.1 Either party may terminate for convenience with thirty (30) days written notice.

7.2 Immediate termination permitted for: material breach unremedied within 15 days; insolvency; cessation of business.

7.3 On termination: Service Provider delivers all Client data within 10 business days and destroys Confidential Information copies.

8. DISPUTE RESOLUTION

8.1 Good faith negotiation between senior representatives within 15 business days of written notice of dispute.

8.2 Unresolved disputes referred to mediation under Indian Institute of Arbitration and Mediation (IIAM) rules.

8.3 If mediation fails: binding arbitration under Arbitration and Conciliation Act, 1996, seated in Bengaluru.

9. FORCE MAJEURE

9.1 Neither party liable for failure caused by circumstances beyond reasonable control, including acts of God, pandemics, government actions, or internet outages.

9.2 Affected party shall notify within 48 hours and use best efforts to mitigate impact and resume performance.

10. DATA PROTECTION

10.1 Personal data processed only per Client instructions and applicable law including the DPDP Act, 2023.

10.2 Appropriate technical and organisational security measures shall be maintained throughout the term.

10.3 A separate Data Processing Agreement shall govern personal data processing under this Agreement.

11. GENERAL PROVISIONS

11.1 Entire Agreement: This MSA constitutes the entire agreement, superseding all prior negotiations.

11.2 Amendments: Must be in writing and signed by authorised representatives of both parties.

11.3 Severability: Invalid provisions do not affect the remaining provisions of this Agreement.

11.4 Notices: All notices in writing by email (with read receipt) or registered post.

FOR: Nexaflow Technologies Pvt. Ltd.	FOR: The Client
Signature: _____	Signature: _____
Name: Rajiv Menon	Name: _____
Designation: Managing Director	Designation: _____
Date: 01 March 2025	Date: _____

REVIEWER NOTE: Liability Cap clause and Indemnification clause are pending legal review and will be incorporated via Amendment No. 1.